

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**RESPONDENT’S UNOPPOSED EMERGENCY MOTION FOR AN
EXTENSION OF TIME TO RESPOND TO VERIFIED COMPLAINT**

Pursuant to Rule 71 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.71, Respondent Omni Logistics LLC (“Omni”), by and through its undersigned counsel, respectfully submits this emergency motion for an extension of time to respond to the Verified Complaint of Complainant Thompson Pipe Group, Inc. (“TPG”), from January 17, 2023 to January 24, 2023. In support of this motion, Omni states as follows:

- Previously, on December 16, 2022, Omni moved for an extension of time to respond to TPG’s verified Complaint from December 26, 2022 to January 23, 2023 (the “First Motion”).
- On December 20, 2022, Chief Administrative Law Judge Erin M. Wirth granted in part and denied in part the First Motion, permitting Omni a shorter extension of time through January 17, 2023.
- On January 12, 2023, Omni’s lead counsel, Marc S. Blubaugh, experienced some significant medical issues and was admitted to a hospital. As of earlier on the date of this filing, Mr. Blubaugh was still in the hospital.
- At the time of his hospitalization, Mr. Blubaugh had not yet finalized Omni’s response to the Verified Complaint, nor had he had a chance to meaningfully confer with his client regarding the same.

- At this stage, Mr. Blubaugh is not in a condition to be able to finalize Omni's response to the Verified Complaint or confer with his client by January 17, 2023.

Omni makes this request in good faith and not for the purpose of delay. Omni's request is predicated on the foregoing facts regarding the unfortunate hospitalization of its lead counsel. Absent that event, Omni would be able to timely file its response to the Verified Complaint and intended to do so. However, under the circumstances, Omni simply needs additional time.

Omni understands that the Commission makes a concerted effort to keep proceedings before the Commission on schedule because, as Chief Administrative Law Judge noted in the Order on the First Motion, the initial decision in this proceeding is due within one year of the filing of the complaint. Omni respects that effort, but nevertheless respectfully makes this request because of the emergent nature of this situation.

As required by 46 C.F.R. § 502.71, Omni has conferred with counsel for TPG, who advised that TPG does not oppose Omni's requested extension of time.

WHEREFORE, Respondent Omni Logistics LLC respectfully requests that the deadline for filing a response be extended to January 24, 2023.

Dated: January 13, 2023

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Nicholas P. Lacey

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Counsel for Respondent Omni Logistics LLC

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 13th day of January 2023, a true and correct copy of the foregoing Unopposed Motion for an Extension of Time to Respond to Verified Complaint was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@fisherbroyles.com)
Gene M. Burd (gene.burd@fisherbroyles.com)

Counsel for Complainant Thompson Pipe Group, Inc.

/s/ Nicholas P. Lacey
Nicholas P. Lacey